

The Amended Assam Aided High and Higher Secondary Schools Employees Rules, 1965

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Rule THE-AMENDED-ASSAM-AIDED-HIGH-AND-HIGHER-SECONDARY-SCHOOLS-EMPLOYEES-RULES-1965 of 1965

[Published on 9 March 1961](#)

[Commenced on 9 March 1961](#)

[\[This is the version of this document from 9 March 1961.\]](#)

[\[Note: The original publication document is not available and this content could not be verified.\]](#)

[The Amended Assam Aided High and Higher Secondary Schools Employees Rules, 1965](#)

[Published vide Notification No. ESS-58/64/11](#)

[Last Updated 10th February, 2020](#)

No. ESS-58/64/11. - The Governor of Assam is pleased to make the amendments to the Assam Aided High and Higher Secondary Employees Rules (1960) published under Notification No. ESS-140/59, dated 9th March, 1961 (vide Assam Gazette, dated 29th March, 1961, which are incorporated below :

1.

The title of the Rule shall be "Amended Assam Aided High and Higher Secondary School Employees Rules, 1965".

These rules shall come into force at once.

2.

Extent of application.

- These rules shall apply to all persons already employed or shall be employed in a Government Aided High or Higher Secondary School coming under these rules on the date of commencement of these rules.

3.

Definition.

- In these rules unless there is anything repugnant in the subject or context-

(a)

"Appointing Authority" means the Appointing Authority under these rules ;

(b)

"Government" means Government of Assam in the Education Department;

(c)

"Managing Committee" means the Committee constituted under the Assam Education Department Rules and Orders ;

(d)

"Selection Board" means the Selection Board constituted under the provisions of Rr. 4(1) and 4(2);

(e)

"Year" means the calendar year ;

(f)

"Government Aided High or Higher Secondary Schools" means a High or Higher Secondary School receiving maintenance grant from the State Government.

4.

Method of recruitment.

(1)

Headmasters/Headmistresses.-

(i)

There shall be a State Selection Board consisting of the following, viz :

(a)

Director of Public Instruction, Assam - Chairman ;

(b)

Additional Director of Public Instruction, Assam - Secretary.

(c)

Inspectors of Schools concerned - Members.

(d)

Two educationists to be nominated by the Government - Members.

(ii)

The Director of Public Instruction, Assam shall ascertain from various institutions concerned well ahead of each academic year vacancies that are likely to occur during the year and advertise in at least two newspapers and also in the Assam Gazette and forward to the Selection Board the applications received together with all relevant records indicating at the same time the number of vacancies and the names of the institutions involved.

(iii)

The Selection Board shall after the interview prepare a list of candidates in order of preference and shall forward the list so prepared to the managing committees of the Schools concerned.

(iv)

The managing committee shall make appointments after due verifications and with prior approval of the Inspectors of Schools concerned.

Note. - Special Pay. - Appointment of Headmasters/Headmistresses already in service but not confirmed shall be regularised in accordance with the conditions in Rule 5 Headmasters/Headmistresses not having the requisite qualifications and experience as set forth in Rule 5 if retained or take on for non-availability or duly qualified persons shall get their grade pay and a special pay of Rs. 60 per month.

The scale pay of Rs. 150-300 sanctioned in 1956 will be treated as grade pay for those Headmasters and

Headmistresses who are enjoining it on 1st April, 1959 and are not eligible for the new scale of pay.

Headmasters and Headmistresses on grade pay, shall, however, get a scale pay of Rs. 200-500 on attainment of the requisite qualifications and experience. (This taken effect from 15th February, 1961).

(2)

Assistant Headmasters/Assistant Headmistresses of High and Higher Secondary Schools. -

(i)

There shall be a Divisional Selection Board in each Inspectorate consisting of the following :

(a)

Inspector of Schools - Chairman ;

(b)

An Assistant Inspector of Schools (to be nominated by the Inspector of Schools) - Secretary ;

(c)

One Headmaster (to be nominated by the Director of Public Instruction Assam) - Member;

(d)

One Headmistress (to be nominated by the Director of Public Instruction Assam) - Member ;

(e)

Two educationists (to be nominated by the Director of Public Instructions, Assam) - Members

(ii)

The Inspectors of Schools shall ascertain from various institutions concerned well ahead of each academic year vacancies in at least two newspapers and also in the Assam Gazette, and forward to the Selection Board the applications received together with all relevant records indicating at the same time the number of vacancies and the names of the institutions involved.

(iii)

The Selection Board shall after interview prepare a list of candidates in order of preference and shall forward the list to the managing committees of the Schools concerned.

(iv)

The managing committees of the Schools shall make appointment after due verification and subject to the approval of the Inspector of Schools.

(v)

The managing committees shall have powers to fill up the vacancies for a period not exceeding three months subject to the approval of the Inspector of Schools.

(vi)

The list of candidates shall ordinarily remain valid for one year from the date of selection.

(3)

Assistant Teachers. - The Assistant Teachers holding Bachelor's of Higher Degrees shall be selected through a test and/or interview to be conducted either by the Director of Public Instruction or by the Board of Secondary Education as may be decided by the Government from time to time. The Director of Public Instruction shall prepare a list of selected candidates in order of preference and publish the list in the Assam Gazette and forward it to the managing committee. The managing committee shall make appointments from a special list after due verification and with the prior approval of the Inspector of Schools concerned. The list of candidates shall ordinarily remain valid for one year.

The managing committee shall have a powers to fill up vacancies even from outside this list for a period not exceeding three months subject to the approval of the Inspector of Schools concerned.

(4)

Office Assistants. - The Managing Committee concerned shall after due advertisement in at least two newspapers make the appointments of Office Assistants subject to the approval of the Inspectors of Schools concerned.

5.

Academic and other qualifications.

- (i) Headmasters/Headmistresses. - A candidate shall hold a B.T. or Master's degree in Arts, Science or Commerce and shall have at least ten years' teaching experience. The educational qualification may be relaxed to the Bachelor's degree in Arts, Science or Commence, if-

(a)

the Headmasters and Headmistresses are already confirmed in their services with due approval of the Inspector of Schools concerned on or before 1st October, 1956 : Provided that such Headmasters/Headmistresses have put in at least ten years service as a teacher in a recognised Secondary School;

(b)

the candidates have put in at least 15 years' service at teacher in recognised Secondary Schools including five years as an Assistant Headmaster or Headmistress or in both the capacities or at least 20 years' experience as a teacher in recognised Secondary Schools. In case of women candidates, however, the candidate may have only 10 years' total teaching experience in Secondary Schools.

(ii)

Assistant Headmasters/Assistant Headmistresses. - A candidate shall hold at least 5 years' experience in teaching which may be relaxed up to three years in exceptional cases of outstanding academic career.

(iii)

Other Assistant Teachers and Office Assistants. - The following shall be the minimum qualifications for the appointment of other assistant teachers ;

(a)

A simple pass in the first part of the Degree Examination ;

(b)

A matriculate, Normal; or

(c)

Such other qualifications as may be prescribed by the Government from time to time.

And the following shall be minimum qualifications for the appointment of other Office Assistants;

A pass in the High of Higher Secondary School Leaving Certificate Examination, or other equivalent Examination.

The managing committee shall after due advertisement and verification make appointments subject to approval of the Inspectors of Schools concerned.

6.

Disqualification for appointment.

- No person shall ordinarily be eligible for appointment unless he is a citizen of India.

7.

Probation.

- All persons other than menials appointed in High or Higher Secondary Schools shall be on probation for a period of two years subject to the production of medical certificate as may be prescribed :

Provided that in the event of unsatisfactory works or conduct during the period of probation for which written warning was given to a probationer or in the event of failure to pass an examination or training or test if so prescribed, the period may be extended by another year.

8.

Discharge of probationer.

- A probationer will be liable to discharge from the service-

(a)

if he/she fails to give satisfaction during or at the end of the period of probation ;

(b)

if on any information received relating to his/her nationality, age, health, character and antecedents, the appointing authority is satisfied that the probationer is ineligible or otherwise unfit for holding the appointment.

9.

Confirmation.

- (i) Where a probationer has completed his/her period of probation to the satisfaction of the appointing authority, he/she shall be confirmed in the service on completion of two years' probation with the prior approval of the Inspector of Schools concerned.

(ii)

Efficiency Bar. - The managing committee shall allow the employees to cross the Efficiency Bar of the character roll and other service records with the prior approval of the Inspector of Schools concerned :

Provided that the Inspector of Schools may withhold the permission or allow the employees to cross the Efficiency Bar

from a date later than due date if he so considers necessary.

10.

Character rolls and service books.

- Character Rolls of Headmasters/Headmistresses shall be kept in the custody of the Director of Public Instruction and the Character Rolls of Assistant Headmasters/Headmistresses and Assistant Teachers shall be kept in the custody of the Inspector of Schools concerned. For Headmasters/Headmistresses, the Inspector of Schools shall initiate the entry in their Character Rolls and the Director of Public Instruction shall be the reviewing and accepting authority. For Assistant Headmasters/Assistant Headmistresses and Assistant Teachers the Headmasters/Headmistresses shall initiate the entry in the Character Rolls and the Inspector of Schools concerned shall be the reviewing and accepting authority. For Office Assistants the Headmasters/Headmistresses shall initiate their entry in the Character Rolls and the Inspector of Schools shall, be the reviewing and accepting authority.

Service Book shall be maintained in the prescribed form for the Head masters/Head mistresses by the Inspector of Schools concerned and in respect of all other employees excluding Grade IV by the Headmasters/Headmistresses concerned.

11.

Superannuation.

- (i) An employee of Aided High And Higher Secondary School shall retire on attaining the age of 60 years :

Provided that the managing committee may, for any special reasons, recommend to the Director of Public Instruction for extension of service to an employee beyond 60 years and the Director of Public Instruction may, on merits of the case and subject to the employee being certified by a Medical Officer duly authorised for the purpose as physically and mentally fit, grant extension up to 63 years only not exceeding one year as a time.

(ii)

In special circumstances the Government may allow extension of service beyond the age of 60 years subject to a maximum period of one year only.

12.

Re-employment.

- (i) No person other than a retired teacher from a Government Educational Institution, who has already attained the age of 55 years, shall ordinarily be re-employed as a High and Higher Secondary School Teacher, Retired teacher from Government Educational Institution may, however, be re-employed on contract basis in Government Aided High and Higher Secondary Schools ; provided that they are certified by a Medical Officer duly authorised for the purpose as physically and mentally fit.

(ii)

Re-employment of persons under sub-rule (i) shall be subject to the provisions of Rule 11 (i) and such other terms and conditions not inconsistent with these rules as may be mutually agreed upon between the Managing Committee and the person concerned with the approval of the Inspector of Schools.

13.

Appeal by Managing Committee.

(1)

A managing committee aggrieved by an order passed by the Inspector of Schools under these rules may within thirty days of such an order prefer an appeal to the Director of Public Instruction against the orders passed by the Inspector of Schools. A copy of the order appealed against must invariably accompany such application. The order of the Director of Public Instruction on appeal shall be final.

(2)

An employee aggrieved by any order of the managing committee may, within 15 days of receipt of such order, prefer an appeal to the Inspector of Schools and to the Director of Public Instruction against the order of the Inspector of Schools within 30 days of the receipt of Inspector of Schools' order through proper channel.

14.

Contributory Provident Fund.

- Every teacher who has been confirmed shall subscribe to the Contributory Provident Fund according to the rules provided in the Education Department Rules and Orders.

15.

Savings.

(1)

Except appointments, not confirmed prior to 1st October, 1956, all things done or actions taken before the commencement of these rules shall be construed as validly done or taken under the corresponding provisions of these rules.

(2)

All appeals and other matters pending before an authority on the date of the commencement of these rules shall be transferred to and be treated as pending before, the appropriate authority in these rules.

(3)

Notwithstanding anything contained in the forgoing rules in respect of appointment Government, may at any time call for the records and pass necessary orders after examination thereof.

16.

On the basis of reports or inspection, the Inspector of Schools may direct the managing committee of a High or Higher Secondary School to enquire into the conduct of any employee and also to take such action as is considered appropriate by him.

17.

The Director of Public Instruction or Inspector of Schools may direct a managing committee to take disciplinary action against any of its employees, and such direction shall be promptly carried out by the Committee. The managing committee shall carry out the necessary formalities required for the purpose.

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